

25STCV04333 25STCV04333

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Case Number: 25STCV04333 Hearing Date: July 14, 2026 Dept: 510

No.

11 - Jose Velazquez, et al. v. Single Room Occupancy Housing Corporation

Defendant

Single Room Occupancy Housing Corporation's Three Motions to Compel Plaintiff's
Further Responses

Defendant

Single Room Occupancy Housing Corporation moves to compel Plaintiff Jose Velazquez to provide further responses to requests for admission, form interrogatories, special interrogatories, and requests for production. Plaintiff did not file an opposition.

As

an initial matter, the Court notes that Defendant's three discovery motions seek to compel further responses to four different sets of discovery. Specifically, the motion to compel further responses to form interrogatories also seeks to compel further responses to special interrogatories. This constitutes an improper omnibus motion. Defendant is advised to file all motions separately and pay the required filing fee for each in the future. Defendant is ordered to pay the clerk \$60 forthwith.

Defendant

is entitled to further responses. A party propounding interrogatories may move to compel further responses when an answer "is evasive or incomplete," "[a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate," or "[a]n objection to an interrogatory is without merit or too general." (Code

Civ. Proc., § 2030.300(a) [interrogatories]; see also Code Civ. Proc §§ 2031.310(a) [requests for production], 2033.290(a) [requests for admission].)

To each of the discovery requests, Plaintiff included boilerplate objections and then responded as follows:

As discovery, investigation and research are incomplete, Responding Party reserves the right to supplement and/or amend this response, and to disclose further information and/or documents supportive of Responding Party's contentions herein, and in so doing, intend to rely on any and all additional information obtained, up to and including the time of trial, which would substantiate, or have a tendency to substantiate, any such additional information or documentation.

These responses are evasive. Plaintiff indiscriminately applied the same boilerplate objections to even the simplest of interrogatories such as form interrogatory request no. 2.1. This request asks for Plaintiff's name and any names used in the past. Generally, after the requesting party moves to compel further responses, the responding party bears the burden of justifying its objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) Plaintiff did not substantiate his objections and did not provide any substantive responses. Plaintiff's objections are overruled.

Sanctions

Defendant moves for \$4,680 in sanctions against Plaintiff and his former counsel of record, Daniel Lavi. "[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP § 2031.310(h).)

Plaintiff did not oppose this motion and there is no evidence suggesting he acted with substantial justification. Plaintiff made numerous meritless objections and made no effort to justify them. A responding party should not object simply for the sake of objecting. Sanctions are just under the circumstances. However, Plaintiff's counsel of record was relieved from representation on April 24, 2026. These motions were filed on April 30, 2026 and were only served on Plaintiff in pro per. Therefore, Plaintiff's

former counsel did not have adequate notice of the sanctions sought against him. The Court will only sanction Plaintiff.

Defendant

asks for attorney fees to compensate for 9 hours spent drafting the motions, 3 hours spent reviewing the opposition briefs and drafting a reply, and 3 hours for attending the future hearing on the motions. The Court exercises its discretion to award Defendant fees incurred for time spent drafting the motions. The Court will not award fees incurred for drafting a reply—no opposition was filed, so no reply brief was necessary. The Court will award 1 hour for attending the hearing. A total of 10 hours at a rate of \$300 per hour is \$3,000. The Court will also award the \$180 in filing fees.

Disposition

Defendant Single Room Occupancy Housing

Corporation's motions to compel Plaintiff Jose

Velazquez to serve further responses to requests for admission, form

interrogatories, special interrogatories, and requests for production are granted. Plaintiff Jose Velazquez is ordered to serve verified

responses without objections within 21 days.

Plaintiff Jose Velazquez is ordered to pay

Defendant Single Room Occupancy Housing

Corporation \$3,180 in sanctions within 21 days.

Defendant

Single Room Occupancy Housing Corporation is ordered to pay \$60

forthwith to the clerk of the court as unpaid filing fees.